

Vehicle Physics Pro Software Development Kit (SDK) License Agreement

Last updated: August 14, 2026

1. Parties to the Agreement/The Subject Matter of the Agreement

1.1

This Vehicle Physics Pro SDK License Agreement (hereinafter referred to as “SLA”) is a legally binding software license agreement between any individual or a single entity (“Licensee”) that acquires a license for Vehicle Physics Pro SDK (“VPP”) and Angel Garcia Voces (EU VAT-ID / company ID: ES09434156Q), based in Oviedo, Spain (“Licensor”), provided through or in connection with the VPP website, accessible at vehiclephysics.com and vehiclephysics.repositoryhosting.com (collectively, the “Website”).

1.2

By installing, copying, accessing, downloading or otherwise using VPP, Licensee agrees to be bound to the provisions of this SLA. All definitions of the Terms shall also apply in this SLA unless the context clearly provides for a different understanding.

1.3

The subject matter of this SLA is the licensing to Licensee of VPP acquired by Licensee. VPP is licensed, not sold.

1.4

When other contracts or terms and conditions are provided by Licensee, the provisions in this SLA shall prevail in case of conflict, similarity or related terms.

2. Licensee's Rights and Obligations

2.1

Licensee agrees to pay all amounts due for the license, support, updates and additional services as set forth in the online cart, quote or invoice and in accordance with the payment, subscription and additional services terms provided on the Website and, if applicable, those of any payment processor.

2.2

Licensee may use Vehicle Physics Pro only for developing software projects within the development tool Unity 3D.

2.3

Licensor grants to Licensee a non-exclusive, worldwide, perpetual license to use and integrate VPP solely in the following manners: (i) as incorporated and embedded components of closed-source electronic games and interactive media distributed to end users; and (ii) for internal use within Licensee's organization, including both commercial and non-commercial internal applications. Except as expressly permitted herein, Licensee shall not reproduce, distribute, sublicense, rent, lease, or lend VPP, nor allow any third party to access VPP or any of its components. For further clarity and without limiting the foregoing, Licensee is only permitted to distribute VPP as part of **end-user, closed-source applications** ("exe" files and associated resources). No code, resources, technologies, or algorithms included in VPP may be used or incorporated into any open-source project, development library, development tool, or middleware product.

Licensee shall not engage in any form of cost-sharing, group purchasing, or "forum pooling" whereby multiple parties collectively acquire a license to VPP and share access to or use of VPP among the contributing parties. Licensee warrants and represents that it shall take all reasonable measures to ensure that its employees, contractors, and representatives are informed of, and comply with, the terms of this SLA.

The perpetual license granted under this Section 2.3 does not include any right to receive support, updates, or additional services. Such services are provided solely in accordance with the terms specified on the Website and may be terminated in accordance with this SLA.

2.4

Licensee is granted a license to install and use VPP on an unlimited number of devices, provided that all such devices are either: (i) physically located at a single physical development site ("Site") owned or controlled by Licensee; or (ii) devices assigned to and used by employees who are permanently assigned to and primarily affiliated with the same Site, including employees working remotely. VPP may not be installed, used, or accessed on devices assigned to employees at different physical sites, even if under common ownership or control, unless a separate VPP license is acquired for each such additional site.

2.5

Licensee must keep the provided VPP components and resources private and internal to the Site and its employees. No part of the source code, binaries or resources (including but not limited to art, 3D files, textures and audio, credentials) included in VPP may be disclosed to a third party, nor included as part of any publicly accessible repository.

3. Licensor's Rights and Obligations

3.1

Licensor shall make this SLA effective and promptly provide the Licensee access to VPP once the Licensee has paid the license in accordance with the payment and subscription terms identified in the Website.

3.2

Licensor may render support services and VPP updates to Licensee for such time that Licensee's account remains active and all payments are fulfilled in accordance with the payment, subscription, support and additional services terms identified in the Website. Support services include: answering questions about the VPP and its features, capabilities, usage; proposing solutions and workarounds to specific situations; providing bug fixes.

3.3

Licensor shall provide the Licensee a method to download and keep VPP updated in the Licensee's computer(s). The necessary credentials and instructions shall be provided to the Licensee to gain access to the latest revisions and the complete version history.

3.4

Licensor may provide additional development services for an additional fee, as provided in the Website. Additional services include reviewing any part of Licensee's project, including code, resources, documentation and settings; writing code for Licensee; configuring vehicles for Licensee; working on Licensee's project; developing new VPP features for Licensee; modifying or adapting VPP features for Licensee; and writing documentation. Licensor reserves the right to request a refundable retainer in advance for providing the services, with reimbursement to the Licensee of any remaining amount following the completion of services.

3.5

Warranty: Licensor shall correct any defects in the operation or functionality of VPP that are not part of the product design nor attributable to third-party products (including, but not limited to Unity 3D) as soon as possible after the Licensor has been notified about such defects, provided that the VPP code and resources are unmodified by the Licensee or its employees.

4. Intellectual Property Rights

4.1

All title and intellectual property rights in and to VPP (including but not limited to any software, source code, images, photographs, animations, graphics, 3D graphics, video, audio, music, text, tutorials, and “applets” incorporated into VPP), the accompanying printed materials, and any copies of VPP are owned by Licensor. All rights not expressly granted are reserved by the Licensor.

4.2

All Intellectual Property Rights related to the resources provided by Licensee to Licensor during the provision of support or additional services to Licensee shall remain exclusive property of Licensee.

4.3

Any modifications or additions to VPP (including, but not limited to code, features, resources and documentation) developed by Licensor during the provision of support or additional services to Licensee shall remain exclusive property of Licensor and will be incorporated to VPP.

4.4

Any custom settings, custom scripts or resources developed by Licensor during the provision of support or additional services that are specific and exclusive to Licensee’s projects shall be property of Licensee.

4.5

Unless explicitly agreed otherwise, Licensee grants Licensor the right to capture and use images and/or videos recorded during the provision of support, additional support, or development services provided to Licensee. Such images and videos may be used by Licensor solely for promotional purposes, including publication on Licensor’s website, social media channels, and other public platforms.

For the avoidance of doubt, Licensor shall not disclose or make public any custom settings, scripts, configurations, proprietary assets, or confidential details developed specifically for Licensee’s projects during the provision of such services. Licensor’s promotional materials shall be limited to showcasing general functionality, demonstrations, or visual content without revealing Licensee’s proprietary or confidential information.

4.6

This SLA does not grant Licensee any rights in connection with any trademarks or service marks of Licensor or Licensor’s other suppliers.

5. Termination

5.1

Without prejudice to any other rights, Licensor may interrupt partially or totally any services provided to Licensee temporarily, or definitely terminate this SLA, if Licensee fails to comply with the terms and conditions of this SLA and the Terms.

5.2

Licensee may terminate Licensee's rights to receive Licensor's support services at any time.

5.3

If, as a result of a decision made by any competent court or authority, Licensor is required to make a refund to Licensee of any fees paid to Licensor for VPP, including but not limited to fees attributable for support services, then this SLA shall terminate.

5.4

In the event of termination of this SLA, all non-perpetual license rights granted herein terminate and Licensee shall no longer be entitled to any additional support, updates or additional services. For the avoidance of doubt, following termination of this SLA, Licensee shall only retain the right to use the version of the VPP which was in effect at the time of termination.

6 Disclaimer of Warranties

6.1

TO THE MAXIMUM EXTENT PERMITTED BY APPLICABLE LAW, LICENSOR FURTHER EXPRESSLY DISCLAIMS ALL WARRANTIES TERMS OR CONDITIONS OF ANY KIND, OTHERWISE STATED ABOVE, WHETHER EXPRESS OR IMPLIED, INCLUDING, BUT NOT LIMITED TO ANY IMPLIED WARRANTIES TERMS AND CONDITIONS OF MERCHANTABILITY, SATISFACTORY QUALITY, FITNESS FOR A PARTICULAR PURPOSE AND NON-INFRINGEMENT, WITH RESPECT TO VPP. THE USE OF VPP IS AT THE LICENSEE'S OWN DISCRETION AND RISK AND THE LICENSEE IS SOLELY RESPONSIBLE FOR ANY DAMAGE TO LICENSEE'S COMPUTER SYSTEM, OR OTHER DEVICE, OR LOSS OF DATA THAT RESULTS FROM SUCH USE.

6.2

ADDITIONAL SERVICES: WHILE THE BEST EFFORT, KNOWLEDGE AND EXPERTISE WILL BE PUT IN DEVELOPING THE HIGHEST QUALITY WORK, LICENSOR EXPRESSLY DISCLAIMS ANY WARRANTY OF MERCHANTABILITY, SATISFACTORY QUALITY, FITNESS FOR A PARTICULAR PURPOSE, DELIVERY TIME OR AVAILABILITY WITH RESPECT TO THE ADDITIONAL SERVICES AND THE RESULTING WORK, REGARDLESS THE AMOUNT OF TIME DEDICATED TO SUCH WORK.

6.3

VPP IS NOT DESIGNED, CERTIFIED, OR INTENDED FOR USE IN CONNECTION WITH SYSTEMS REQUIRING COMPLIANCE WITH SAFETY-CRITICAL STANDARDS, INCLUDING BUT NOT LIMITED TO NUCLEAR FACILITIES, LIFE SUPPORT SYSTEMS, EMERGENCY COMMUNICATIONS, AIRCRAFT NAVIGATION OR COMMUNICATION SYSTEMS, AIR TRAFFIC CONTROL SYSTEMS, AUTONOMOUS DRIVING SYSTEMS, OR ANY OTHER APPLICATIONS WHERE THE FAILURE OF VPP COULD RESULT IN DEATH, PERSONAL INJURY, OR SEVERE PHYSICAL OR ENVIRONMENTAL DAMAGE. ANY SUCH USE OF VPP BY LICENSEE SHALL BE ENTIRELY AT LICENSEE'S OWN RISK, AND LICENSOR EXPRESSLY DISCLAIMS ANY LIABILITY OR RESPONSIBILITY FOR ANY SUCH USE.

7. Venue and Applicable Law

7.1

This Agreement shall be governed by and construed in accordance with the laws of Spain, without regard to conflict of laws principles. All disputes arising out of or in connection with this Agreement shall be finally settled under the Rules of Arbitration of the International Chamber of Commerce by one (1) arbitrator appointed in accordance with the said Rules. The seat of arbitration shall be Paris, France. The language of the arbitration shall be English.

7.2

Any dispute, communication, proceeding, or legal procedure in connection with this Agreement shall be conducted in English language.